

Court No. - 50

Case :- WRIT - C No. - 21123 of 2018

Petitioner :- Shyam Kumar

Respondent :- Madhyanchal Vidyut Vitaran Nigam Limited
And 3 Others

Counsel for Petitioner :- Udit Chandra

Counsel for Respondent :- Kapil Dev Singh Rathore

Hon'ble Pankaj Mithal,J.

Hon'ble Jayant Banerji,J.

The petitioner has invoked the writ jurisdiction of this Court so as to challenge the final assessment order dated 23.05.2018 in respect of the electricity dues.

The submission is that without making the provisional assessment the impugned order of final assessment has been passed.

The argument on the face of it is not tenable as we find that the provisional assessment was made on 23.04.2018 and notice for hearing for the purposes of final assessment was given to the petitioner.

This apart against the provisional assessment order, the petitioner has a remedy of filing an appeal under Section 127 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2005.

In view of alternative remedy so available to the petitioner, which has not been exhausted, the writ petition is dismissed.

Order Date :- 7.6.2018

MAA/-